

12. 9:00 AM CASE NUMBER: MSC19-00771

CASE NAME: GREG HART VS THOMAS MILWAY

MOTION TO ENFORCE REMITTITUR FILED ON 05/14/26 BY CHARLES WILCOXSON & SHERRY WILCOXSON

FILED BY:

TENTATIVE RULING:

Cross-Complainants Charles and Sherry Wilcoxson's motion to enforce the remittitur is granted in part and denied in part. The August 18, 2023, order on the Milways' motions for summary judgment and adjudication is vacated with new rulings on those motions provided below. Further, the Court sets a trial setting conference for August 27, 2026, at 8:30a.m.

Ruling on Motions for Summary Judgment

The Milways filed motions for summary judgment or adjudication as to their cross-complaint and the Wilcoxsons' cross-complaint. On August 18, 2023, the Court granted summary judgment on the Wilcoxsons' cross-complaint and it granted summary adjudication on part of the Milways' claims against the Wilcoxsons. The Milways subsequently dismissed their final claim against the Wilcoxsons for declaratory relief regarding the 28' wide strip of land beneath Alwin Road. (Dismissal filed 824/23.)

The Wilcoxsons appealed. The Court of Appeal found that there was a triable issue as to the Wilcoxsons' prescriptive easement claim. The Court of Appeal reserved in part and affirmed in part. (*Milway v. Wilcoxson*, case no. A168895; opinion filed 12/24/24.)

The Court of Appeal held that "Summary judgment of the Wilcoxsons' cross-complaint as to the third, fourth, and fifth causes of action are reversed. Summary judgment of the Wilcoxsons' cross complaint as to the first and second causes of action are affirmed. Summary adjudication of the Milways' cross-complaint as to the first (the Wilcoxsons' claim to any 'title, right, estate, lien or interest' in the Milway property) and third (cause of action to quiet title) issues are reversed. Summary adjudication of the Milways' cross-complaint as to the second issue (the Wilcoxsons' claim that a 28-foot strip of land extending from 20 Alwin Road to Homestead Avenue is part of the Harts' property) is affirmed." (*Milway v. Wilcoxson*, case no. A168895; opinion filed 12/24/24.)

The Wilcoxsons filed this motion to have the Court follow the remittitur. The Court will follow the remittitur. The August 18, 2023, order is vacated and the Court enters the following order in the parties' motions for summary judgment and adjudication as follows:

Summary adjudication of the Wilcoxsons' cross-complaint as to the third, fourth, and fifth causes of action are denied. Summary adjudication of the Wilcoxsons' cross-complaint as to the first and second causes of action are granted.

Summary adjudication of the Milways' cross-complaint as to the first issue (cause of action one for declaratory relief regarding the Wilcoxsons' claim to any "title, right, estate, lien or interest" in the Milway property) and the third issue (cause of action three for quiet title) are denied. Summary adjudication of the Milways' cross-complaint as to the second issue (cause of action one for declaratory relief regarding the Wilcoxsons' claim that a 28-foot strip of land extending from 20 Alwin

Road to Homestead Avenue is part of the Harts' property) is granted.

Costs on Appeal

The Wilcoxsons were awarded their costs on appeal. They filed a memorandum of costs on March 28, 2025, for \$1,025.44. The Milways did not file a motion to tax costs. When the Wilcoxsons filed this motion they had not received payment for the costs. In the opposition, however, the Milways provide proof that they paid the costs on June 11, 2026. (Haramalis dec. ¶9.) Therefore, the request for costs is moot.

Request for Order on Obstructions

The Wilcoxsons also request an order directing the Milways to immediately remove all obstructions from the easements to allow the easements to be used as they were used prior to the date that the Milways purchased 1000 Homestead. The Court of Appeal did not enter judgment in the Wilcoxsons' favor on the easement issues. Instead, the reversal by the Court of Appeal found that there were issues that should be decided by the trier of fact.

The Wilcoxsons' request that the Milways be ordered to remove obstructions from the easement area is not supported by the Court of Appeal's order and is otherwise not supported by this motion. The request is **denied**.

Case Management

This case was scheduled for a jury trial approximately one month after the motions for summary judgment and adjudication were heard in 2023. Thus, this case appears ready for trial. The Court plans to re-set this case for jury trial as soon as possible.

The Court sets a trial setting conference for August 27, 2026, at 8:30a.m. Appearances by Zoom are acceptable. At least five court days before the hearing, the parties shall file and serve trial setting conference statements that address the following points: (1) when is the earliest the parties will be ready for trial, (2) the estimate trial length, (3) do the parties plan to proceed with a jury trial (as originally scheduled) or a court trial, (4) any dates the parties are unavailable for trial in the next 12 months and (5) is there any concern with the 5 year statute?

13. 9:00 AM CASE NUMBER: MSC20-02183

CASE NAME: GARY ELLIS VS. ARB, INC.

COMPLIANCE HEARING SET BY THE COURTROOM

FILED BY:

TENTATIVE RULING:

This Compliance Hearing was set by the Court to determine compliance with the Court's Order re Final Approval of Class Action settlement filed on September 15, 2025.

Upon review of the compliance report filed by Plaintiff and Co-Class Counsel, and the declaration filed by Kevin Lee of Phoenix Settlement Administrators certifying disbursement filed on July 27, 2026, the